IN THE PESHAWAR HIGH COURT, PESHAWAR
Present:
* Hon'ble Mr. Justice Jamal Khan Mandokhail
* Hon'ble Mr. Justice Hasan Azhar Rizvi

Crl. Appeal No. 380/2024
Citation: PLD 2024 Lah 500
Matter ID: MAT-FAMI-2024-182

BETWEEN:
Ghulam Mustafa ... Appellant / Petitioner
VERSUS
Additional District Judge, Lahore ... Respondent

LEGAL TOPIC: Family - Khula & Dower Maintenance
STATUTES CITED: Muslim Family Laws Ordinance 1961, S. 7, S. 9, Family Courts Act 1964, S. 5

JUDGMENT
1. This judgment disposes of Crl. Appeal No. 380/2024, directed against the final judgment rend ered by the court below.
2. We have heard the learned counsel for the petitioner as well as the learned Additional Attor ney General and perused the record with their able assistance.
3. The principal question requiring determination is:
Whether the impugned order violates principles of natural justice and Article 10A of the Con stitution?
4. Learned counsel for the appellant vehemently argued that the statutory safeguards embodied i n Muslim Family Laws Ordinance 1961, S. 7 were disregarded, thereby causing grave miscarriage o f justice. On the contrary, learned counsel for the respondent defended the impugned judgment, asserting that full opportunity of hearing was afforded.
5. Having evaluated the record and relevant case law, it is well-settled that procedural law is handmaid of justice and cannot be weaponized to thwart substantive rights. The evidence on rec ord clearly supports the findings arrived at.
6. HOLDING & RATIO DECIDENDI:
For the reasons recorded above, this Court holds that the concurrent findings arrived at by the learned High Court do not call for any interference. The appellant has failed to demonstrate a ny illegality or procedural irregularity in terms of Muslim Family Laws Ordinance 1961, S. 7. A ppeal stands dismissed with no order as to costs.

Decided on: 3 October 2024.